

Third, the proposed Notice of Settlement is deficient. Although the proposed notice mentions the Administrator's website, it does not have a section reserved for the website to be inserted. For example, the last page of the proposed notice includes a line for the Administrator's email address, mailing address, and telephone number, but there is no line reserved for the Administrator's website.

Accordingly, the court denies the motion for preliminary approval of class action and PAGA settlement, without prejudice.

23CV-03479 Diana Contreras Rodriguez vs.LE HOMES, et al

Motion to Be Relieved As Counsel

The motion to be relieved as counsel is DENIED WITHOUT PREJUDICE.

Counsel failed to use mandatory form MC-052 for the attorney declaration. (See Rules of Court, rule 3.1362.)

Counsel is able to refile the motion using the correct mandatory forms.

23CV-04368 Tony Borba, et al. vs County of Merced, et al.

Objection to Report of Discovery Dispute Conference Re Commencement of Depositions by Defendants

Appearance required.

25CV-00872 Virginia Allen vs Richard Vargas, Junior

Motion for Interlocutory Judgment for Partition by Sale

The motion for interlocutory judgment for partition by sale is DENIED WITHOUT PREJUDICE.

The Partition of Real Property Act applies to all partition actions where title to the property is held in tenancy in common, where no agreement exists binding all cotenants which governs the form of partition of the property, and the action was filed after January 1, 2023. (Code Civ. Proc. § 874.311.)

The court finds that sufficient evidence exists to make the threshold finding that title to the property at 9304 North Winton Way, Winton, California (the "Property") is held in tenancy in common by Plaintiff and Defendant. As a prima facie showing of the applicability of the PRPA has been made, subject to the merits of the case and defenses raised by both parties, this court must first comply with the terms of the PRPA before reaching the merits of the partition action.

Accordingly, the parties are ordered as follows:

1. Meet and confer regarding the value of the Property or a proposed method of valuation. If a stipulation to value or method of valuation can be reached, it is to be filed with the Court *no later than* September 11, 2026. The Court must adopt any such stipulation or agreement. (Code Civ. Proc. § 874.316, subd. (b).)

2. If no agreement regarding the Property's value or the appropriate method of valuation can be reached, the parties are to meet and confer and select a disinterested real estate appraiser licensed in the State of California to conduct the appraisal, to be filed with the court *no later than* September 18, 2026.

3. If no agreement regarding an appointed real estate appraiser can be reached, each party is ordered to file with the court and serve on opposing counsel, *no later than* September 18, 2026, the names of three (3) real estate appraisers licensed in the State of California, along with their rates in the event of appointment. Each party must then also submit their proposed valuation of the property, if any, accompanied by an offer of proof of the basis of this proposal, which may be in the form of declarations.

4. On September 24, 2026, at 8:15 a.m. in Courtroom 8, the Court will appoint a real estate appraiser licensed in the State of California to determine the fair market value of the property, pursuant to Code of Civil Procedure section 874.316, subd. (d), unless the Court finds the cost of appraisal outweighs its value to the Court based on the proposed values and offers of proof submitted by the parties. (Code Civ. Proc. § 874.316, subd. (c).)

5. If an appraiser is appointed, the Court will follow the provisions of Code of Civil Procedure section 874.316, subdivisions (e) through (g), and an additional evidentiary hearing will be scheduled at least 30 days after notice of the appraisal is sent to all parties.

6. As both parties have requested partition, once the fair market value of the property has been determined, either by way of agreement or following an evidentiary hearing, the parties may then file a motion for interlocutory judgment.

26CV-03503 Raquel Comparam vs Priscilla Gonzalez

Order to Show Cause re: Restraining Order

Appearance required.

21CV-03369 Veronica Padron vs Bhavesh Patel, et. al.

Review of Case Status

Appearance required.
